

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF NIKITIN AND OTHERS v. RUSSIA

(Applications nos. 74076/16 and 3 others –
see appended list)

JUDGMENT

STRASBOURG

12 January 2023

This judgment is final but it may be subject to editorial revision.

COUNCIL OF EUROPE
CONSEIL DE L'EUROPE

In the case of Nikitin and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli, *President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar*,

Having deliberated in private on 8 December 2022,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

6. The applicants complained principally of the unlawful detention (deprivation of liberty). They relied, expressly or in substance, on Article 5 § 1 of the Convention, which reads as follows:

> "1. Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law:
>
> ...

(b) the lawful arrest or detention of a person for non- compliance with the lawful order of a court or in order to secure the fulfilment of any obligation prescribed by law;

(c) the lawful arrest or detention of a person effected for the purpose of bringing him before the competent legal authority on reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so[.]"

7. The Court reiterates that that the expressions "lawful" and "in accordance with a procedure prescribed by law" in Article 5 § 1 essentially refer back to national law and state the obligation to conform to the substantive and procedural rules thereof. It is in the first place for the national authorities, notably the courts, to interpret and apply domestic law. However, since under Article 5 § 1 failure to comply with domestic law entails a breach of the Convention, it follows that the Court can and should exercise a certain power to review whether this law has been complied with (see, among numerous other authorities, *Benham v. the United Kingdom*, 10 June 1996, §§ 40-41 *in fine, Reports of Judgments and Decisions* 1996 III).

8. In the earlier cases against Russia, the Court has consistently held that (1) detention of an administrative suspect beyond the three-hour statutory period (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), or (2) "escorting" to the police station and ensuing detention of an administrative suspect in order to prepare an administrative offence record in the absence of any exceptional circumstances or necessity justifying the arrest and detention as required by the national legislation (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019, and *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019) or (3) detention of an administrative suspect beyond the 48-hour statutory period (see *Tsvetkova and Others*, cited above, §§ 121-22) have been contrary to domestic law requirements and the "lawfulness" guarantee of Article 5 of the Convention.

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility (including taking into account the three-month extension introduced by decision of the President of the Court in 2020 as a consequence of the lockdown imposed in France on account of the COVID-19 pandemic (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022)) and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the applicants' detention was contrary to domestic law requirements and the "lawfulness" guarantee of Article 5 of the Convention (see the appended table).

10. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see, among other numerous authorities, *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning absence of a prosecuting party from the administrative proceedings, and *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies).

12. In view of the above findings, the Court considers that there is no need to deal separately with the remainder of the applicants' complaints under Article 6 of the Convention concerning alleged restrictions on the right to examine witnesses and to adduce evidence.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia [Committee],* no. 1253/04 and 2 others, § 96, 11 December 2014), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the applications admissible;

3. *Holds* that these applications disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see the appended table);

5. *Holds* that it is not necessary to deal separately with the remainder of the applicants' complaints under Article 6 of the Convention concerning the alleged unfairness of the criminal (administrative) proceedings against them;

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 12 January 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	74076/16 22/11/2016	**Aleksey Anatolyevich NIKITIN** 1985		12/12/2015 2 p.m. (recorded at 3.44 p.m.)	14/12/2015 2.20 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5 (1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) – lack of impartiality of tribunal – absence of a prosecuting party in administrative proceedings (see Karelin v. Russia (no. 926/08, 20 September 2016): Final decision – Moscow City Court, 24/05/2016 Art. 11 (2) – disproportionate measures against organisers and participants of public assemblies – March for Change in the Pushkinskaya Square in Moscow on 12/12/2015, Article 19.3 § 1 of CAO, fine of RUB 1,000, Moscow City Court, 24/05/2016	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
2.	43923/19 08/08/2019	**Aleksey Viktorovich SOKIRKO** 1974	Lawyers of the former Memorial Human Rights Centre Moscow	16/12/2018 2.40 p.m. 03/08/2019 2.30 p.m.	16/12/2018 7.00 p.m. 05/08/2019 7.00 p.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018) Detention as an administrative suspect: beyond the 48-hour statutory period (Art. 27.5(3)-(4) and Art. 29.6(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018),	Art. 6 (1) – lack of impartiality of tribunal – lack of prosecuting party in both sets of administrative proceedings (see Karelin v. Russia, no. 926/08, 20 September 2016); two sets of the proceedings: Final decisions – 08/02/2019 and 12/08/2019, Moscow City Court. Art. 11 (1) – restrictions on location, time or manner of conduct of public events – Under Articles 20.2 §§ 5 and 8 of CAO, the applicant was sentenced to the administrative detention of 20 days and administrative fine of RUB 10,000 for participating in two demonstrations on 16/12/2018 and 03/08/2019. Final decisions – 08/02/2019 and 12/08/2019, Moscow City Court.	3,900
3.	31239/20 08/07/2020	**Ruslan Ibodulloyevich GAYRATOV** 1999	Lawyers of the former Memorial Human Rights Centre Moscow	27/07/2019 1.30 p.m.	27/07/2019 11.58 p.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) – lack of impartiality of tribunal – The lack of a prosecuting party in the administrative proceedings (see Karelin v. Russia, no. 926/08, 20 September 2016): Final decision – Moscow City Court, 08/10/2019. Art. 11 (2) – disproportionate measures against organisers and participants of public assemblies – the applicant's administrative arrest and conviction for	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
							having participated in an unauthorised public event. Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019. Conviction under Article 20.2 § 5 of CAO to fine of RUB 10,000. Final judgment – Moscow City Court, 08/10/2019.	
4. -	34304/20 17/07/2020	**Igor Eduardovich NIKANDROV** 2000	Lawyers of the former Memorial Human Rights Centre Moscow	27/07/2019 1.45 p.m.	28/07/2019 0.30 a.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings (see Karelin v. Russia, no. 926/08, 20 September 2016): Final decision- Moscow City Court, 18/10/2019. Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant's administrative arrest and conviction for participating in an unauthorised public event. Manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019. Conviction under Article 20.2 § 5 of CAO to fine of RUB 12,000. Final decision - Moscow City Court, 18/10/2019.	3,900

[1] Plus any tax that may be chargeable to the applicants.